

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Gordon P. Gallagher

Date: June 27, 2023
Deputy Clerk: Donald L. Clement
Court Reporter: Kevin Carlin
Law Clerk: Caitlin Grimmer and Zachary Dwyer

Civil Action No. **1:21-cv-01748-GPG-MEH**

Counsel:

JASON D YEAGER,

DezRae D. LaCrue
Joshua Ty Hotchkiss

Plaintiff,

v.

ALLSTATE FIRE AND CASUALTY INSURANCE
COMPANY,

Kurt Hans Henkel
Winslow Russell Taylor, III

Defendant,

COURTROOM MINUTES

Jury Trial, Day 4

8:30 a.m. Court in session.

All counsel, Jason Yeager and Raul Sanchez are present in the courtroom.

Discussion outside the presence of the jury pertaining to jury instructions.

ORDERED: Lunches are to be provided to the jury beginning June 29, 2023, and for the duration of deliberation.

9:55 a.m. Court in recess.

10:17 a.m. Court in session. Jury not present.

Discussion outside the presence of the jury pertaining to final jury instructions.

10:23 a.m. Jury present

10:25 a.m. Defendant's witness Mr. James Johnson is called and placed under oath by the judge.

Cross examination of Mr. Johnson by Ms. LaCrue.

Redirect examination of Mr. Johnson by Mr. Taylor.

11:32 a.m. Bench Conference

Continued redirect examination of Mr. Johnson by Mr. Taylor.

Mr. Johnson is excused.

Defendant rests.

Plaintiff has no rebuttal witnesses.

11:38 a.m. Jury is excused from the courtroom.

11:39 a.m. Court in recess.

12:22 a.m. Court in session. Jury not present

12:23 a.m. Jury present.

The Court's final set of jury instructions are read to the jury.

12:48 p.m. Plaintiff's opening closing argument by Mr. Hotchkiss.

1:17 p.m. Defendant's closing arguments by Mr. Henkel.

1:40 p.m. Plaintiff's rebuttal closing argument by Ms. LaCrue.

1:47 p.m. Court Security Officer Sworn.

1:49 p.m. Jury is excused to begin deliberation.

Counsel is to stay within 10 minutes of the courthouse.

1:50 p.m. Court in recess.

4:39 p.m. Court in session. Jury not present

4:39 p.m. Jury present.

Verdict tendered to the Court. Court reads verdict.

Verdict reached.

4:46 p.m. Jury is discharged.

Discussion regarding briefing deadlines and bill of costs.

ORDERED: Counsel shall file their notice regarding briefing schedule on or before July 10, 2023, as specified on the record.

Exhibits are returned to the custody of their respective parties.

4:49 p.m. Court is adjourned. Trial concluded.

Total time in court: 4 Hours 25 Minutes